

Amendment No. 1 to SB1384

Gardenhire
Signature of Sponsor

AMEND Senate Bill No. 1384

House Bill No. 683*

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Section 62-35-102, is amended by adding the following new subdivision:

() "Enhanced armed guard" means an armed security guard/officer who has successfully completed enhanced armed guard training as described in § 62-35-144(c) and applied for and received an enhanced armed guard registration enhancement from the commissioner as described in § 62-35-144(b);

SECTION 2. Tennessee Code Annotated, Section 62-35-103(a), is amended by deleting the language "This chapter does not apply to:" and substituting "The requirements to obtain a license or registration under this chapter do not apply to:".

SECTION 3. Tennessee Code Annotated, Section 62-35-125, is amended by designating the existing language as subsection (a) and adding the following as subsection (b):

(b)

(1) An enhanced armed guard may carry a rifle or shotgun only if certified to carry such firearm. An enhanced armed guard may carry only the type of rifle or shotgun that the commissioner prescribes by rule when in the performance of the guard's duties.

(2) An enhanced armed guard may only deploy a rifle or shotgun, whether in an offensive or defensive posture, when a legitimate threat necessitating such deployment is perceived to exist or be imminent. During such time as a threat necessitating deployment of a rifle or shotgun is not perceived to

exist or be imminent, the rifle or shotgun must be securely stored in such manner as the commissioner may prescribe by rule.

(3) As used in this subsection (b), "rifle" and "shotgun" have the same meanings as those terms are defined in § 39-17-1301.

SECTION 4. Tennessee Code Annotated, Title 62, Chapter 35, Part 1, is amended by adding the following as a new section:

62-35-144.

(a) To be eligible for a registration enhancement as an enhanced armed guard, an applicant must:

(1) Hold a current registration card issued by the commissioner to act as an armed security guard/officer in this state, and be in good standing;

(2)

(A) Have a minimum of five (5) years of experience as a full-time law enforcement officer and be in good standing with the employing law enforcement agency or former law enforcement agency if retired or separated from employment as a law enforcement officer; or

(B) Have a minimum of four (4) years of experience as a full-time member of the armed forces of the United States while in a combat arms military occupational specialty and be in good standing or, if retired or separated from the armed forces, have received an honorable discharge;

(3) Submit to the following, with results submitted to the commissioner:

(A) A fingerprint-based criminal history record check to be conducted by the Tennessee bureau of investigation and then a fingerprint-based national criminal history record check to be completed by the federal bureau of investigation; and

(B) A psychological evaluation as described in § 38-8-106(9); and

(4) Successfully complete, to the commissioner's satisfaction:

(A) A written examination; and

(B) An in-person enhanced armed guard training course

approved by the commissioner.

(b) The commissioner may request from an applicant such information as the commissioner deems necessary to constitute proof of an applicant's eligibility pursuant to subsection (a). Upon receipt of a completed application and finding after investigation that the applicant armed security guard/officer meets all eligibility requirements for enhanced armed guard registration enhancement, the commissioner shall issue proof of a registration enhancement to the applicant upon the appropriate payment of fees as established by the commissioner.

(c)

(1) An enhanced armed guard training course approved by the commissioner must be offered no less than quarterly, be at least sixteen (16) hours in duration and, in addition to legal, weapon handling, marksmanship, and tactics training, must also include:

(A) Scenario-based training on when a rifle or shotgun may be deployed in an offensive or defensive posture; and

(B) Training on the secure storage of a rifle or shotgun when the weapon is not deployed.

(2) The commissioner may contract with a third party to administer the training required by this section.

(3) The commissioner may apply as full or partial credit toward the enhanced armed guard training required by this section, a rifle or shotgun training course that an applicant completed while in the armed forces or employed as a law enforcement officer, as long as the commissioner finds that such training is equivalent or superior to that which is required by this section.

(d)

(1) An enhanced armed guard registration enhancement expires one (1) year from the date of issuance.

(2) To renew an enhanced armed guard registration enhancement, an enhanced armed guard must:

(A) Pay an annual renewal fee, as set by the commissioner;

(B) Submit to a criminal background check, with results submitted to the commissioner; and

(C) Successfully complete an annual requalification course, approved by the commissioner, that is a minimum of eight (8) hours in duration, of which no less than six (6) hours consist of rifle and shotgun training and qualification on a weapon range.

(e) As used in this section, "rifle" and "shotgun" have the same meanings as those terms are defined in § 39-17-1301.

SECTION 5. The commissioner is authorized to promulgate rules to effectuate this act. The rules must be promulgated in accordance with the Uniform Administrative Procedures Act, compiled in Tennessee Code Annotated, Title 4, Chapter 5.

SECTION 6. For the purpose of promulgating rules, this act takes effect upon becoming a law, the public welfare requiring it. For all other purposes, this act takes effect January 1, 2026, the public welfare requiring it.